BATANAI MINING SYNDICATE
versus
MINISTER OF MINES AND MINING DEVELOPMENT
and
SECRETARY OF MINES AND MINING DEVELOPMENT
and
M.M MINING SYNDICATE
and
CEDRIC STEELE

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 7 January 2026

Court Application for declaratory order

T. Mapuranga with *A. Rubaya,* for the applicant
T. Kadhau, for 4th respondent

CHITAPI J: The dispute in this matter concerns disputed mining rights in mining claims called Mapeta 164 and Mapeta 168 situated in Guruve, Mashonaland Central Province. The disputants are the applicant Batanai Mining Syndicate and the fourth respondent Cedric Steele. The first to third respondents being the Minister of Mines and Mining Development, Secretary to the Ministry and M.S Syndicate are interested parties. They did not file any responses to the application.

The applicant applies for a *declaratur* to the effect that it is exclusively the sole mining entity which holds valid registration certificates to the mining locations called Mapeta 164 and 168. The third respondent was cited because it holds a prospecting license authorising it to prospect in the areas of dispute between the applicant and the fourth respondent.

The applicant claimed that the two claims as at 1 July 2011 were registered in the name of Tabatana Mining Syndicate under registration certificates numbers 41194 and 41198 respectively. The applicant averred that on 11 July 2021 the transfers of the claims to it were registered and certificate numbers 31190 and 31194 were issued. The applicant averred that on registration of the claims by the applicant's predecessor Tabatana Mining Syndicate, the area on which the claims are located was open to prospecting.

The applicant further averred that the records in the offices of the first and second respondents show that the fourth respondent applied to register a different mining location called Mapeta 36 which was then registered in the fourth respondents favour carrying registration number 30378. The applicant further averred that the fourth respondents claim Mapeta 36 was forfeited on 25 March 2009. The long and short of the applicant's narrative was that the fourth respondent did not have any valid claim to mining claims Mapeta 164 and Mapeta 168. Consequently, the applicant prayed as follows in its draft order

"IT IS ORDERED THAT:

1. The application for a declaratory order be and is hereby granted with costs on the higher scale against (sic) the 3rd and 4th Respondents jointly and severally one paying the other to be absolved.28
2. It is hereby declared that the Applicant is the sole mining entity with valid registration certificates namely Certificate of Registration number 41194 (Transfer Number 31190 dated 15" of July 2021) and Certificate of Registration number 41198 (Transfer Number 31194 dated 15" of July 2021), which certificate entitle Applicant to solely conduct mining operations within mining locations known as Mapeta 164 and Mapeta 168
3. It is hereby declared that Certificate of Registration Number 30378 for Mapeta 36 which was registered in favour of 4th Respondent and forfeited on 25th March 2009 is null and void for purposes of giving 4th Respondent any purported rights to conduct mining operations within mining locations known as Mapeta 164 and Mapeta 168.
4. Consequent to paragraphs 2 and 3 above, the 4th Respondent's occupation of Mapeta 36, Mapeta 164 and Mapeta 168 be and is hereby declared to be unlawful and it is hereby declared that the 4th Respondent is conducting illegal mining operations within the mining locations known as Mapeta 36, Mapeta 164 and Mapeta 168 and therefore should cease its illegal operations."

The fourth respondent took a preliminary point in his opposing affidavit. He averred that the dispute which the applicant had brought before to court was *res judicata*. The fourth respondent averred that the dispute between the parties was already determined by the Provincial Mining Director (Mashonaland Central Province) on 10 February 2022. He averred that the cause of action was the same one now brought before the court. The fourth respondent averred that the determination aforesaid had not been appealed against. He averred that in the determination section 177 of the Mines and Minerals Act [*Chapter 21:05*] was applied. It states that the holder of a prior registration prevails where claims over ownership of mining claims are determined. In terms of the determination so stated the fourth respondent, the applicants acclaimed claim Mapeta 168 was subordinate to Mapeta 36 which was registered first and covered the same of more or less the same area.

The fourth respondent averred that in the determination, the applicant was directed to adjust its block of claims to avoid encroachment in Mapeta 36 registration number 303378.

He also averred that the applicant should have appealed against the decision aforesaid in terms of section 361 of the Mines and Minerals Act. It is convenient to recite the provisions of section 361. They read as thus:

> "361. Any party who is aggrieved by any decision of a mining commissioner's court may appeal against such decision to the High Court and that court may make such order as it deems fit"

The fourth respondent further alleged that to seek a *declaratur* as done by the applicant was unprocedural. He also averred that the applicant was not candid with the court because it did not disclose that it filed an application for review of the determination aforesaid on 12 April 2022 under case number HC 2124/24. The application was served upon the fourth respondent on 19 April 2022 before it was withdrawn on 19 April after the fourth respondent had filed a notice of opposition. The fourth respondent averred that it was not competent for the applicant to petition the court at first instance as it did.

On the substance of the dispute, the fourth respondent averred that the claims Mapeta 164 and 168 were registered over land which was not open for prospecting in that the area was already registered as Mapeta 36 under certificate number 30378. The fourth respondent claimed that the predecessor of the claims claimed by Tabatana Mining Syndicate did not hold valid certificates which they purported to transfer to the applicant. The fourth respondent claimed to have occupied the disputed area by virtue of its registration as Mapeta 36 since 2003 when he pegged and regulated the claim. This meant that the subsequent registration in favour of Tabatana Mining Syndicate and the applicant was illegal, so fourth respondent posited. The fourth respondent averred that the real dispute is that the applicant acclaimed claims over pegged into Mapeta 36.

The fourth respondent averred that when he pegged Mapeta 36 claim, it was under the old system of identification of pegged areas which was based on estimated ground positions using a map for the area. Ground positions were then marked, and beacons erected or fixed to demarcate the pegged area. The fourth respondent averred that his ground positions were correct. He averred that nowadays there is the use of Global Positioning System which is used to delineate an area and to fix coordinates. Beacons are then erected. Significantly, the fourth respondent disputed the accuracy of a map produced by the applicant over the area as it was drawn by a prospector. He averred that the correct map was annexure A drawn by a

registered surveyor. In relation to an alleged forfeiture of his claim, the fourth respondent averred and established to the court that the revocation was reversed.

The fourth respondent also averred that the determination by the Provincial Mining Director was reached after the applicant and the fourth respondent consented to the determination of the matter. The fourth respondent attached copies of the affidavits aforesaid. He therefore for this further reason averred that the dispute was resolved. The fourth respondent prayed for a dismissal of the applicants claim and punitive costs.

The second respondent (secretary to the Mines ministry) filed an opposing affidavit. He raised the same arguments as the fourth respondent that the matter is *res judicata* it having been determined by the Provincial Mining Director per the determination dated 10 February 2022. The second respondent averred that the applicant ought to have noted an appeal or review to the court and not filed this first instance application. The second respondent also averred that the applicant had previously filed an application for review of the determination and withdrew the application for unknown reasons. The second respondent confirmed that the fourth respondent was the prior pegger and registrant of Mapeta 36 location registration No 30378 as at 27 March 2003 and that the applicant's predecessor Tabatana Mining Syndicate prospected and pegged its claims over Mapeta 36 which area was nolonger open to prospecting and pegging post 29 March 2003.

Significantly, the second respondent averred that the conclusion on the determination was that the fourth respondent was in his correct ground position. The second respondent averred that the map produced by the applicant was inconsistent with the GPS system positions and that the GPS system was the one now in use. On the issue of the alleged forfeiture of the fourth respondents claim, the second respondent clarified that forfeiture was reversed on 28 March 2009. The second respondent capped his position and that of the first respondent as follows in paragraph 8 of the opposing affidavit:

> "8 AD PARA 20-27
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> This is disputed. As clearly pointed out (supra), the 4th respondent is conducting activities legally as a prior pegger to the disputed mining location. There is a determination by the PMD Mashonaland Central Province which is attached hereto for ease of reference. Accordingly, applicant should have appealed against that decision or should have proceeded with its application for review"

In the answering affidavit, the applicant averred that the PMD's determination was inconsequential because he had no jurisdiction to determine the dispute but the Mining

Commissioner. It is settled that the PMD through delegation by the secretary or second respondent can lawful exercise such jurisdiction. The determination therefore holds.

The applicant persisted that the fourth respondents title to Mapeta 36 had been revoked and that the reinstatement was not properly done. This of course would be a matter to be taken up with the first and second respondents and cannot be answered now by the court. In any event, the applicant did not detail what the procedure which was or followed was or how it was not followed. The applicant persisted that the claims Mapeta 164 and 168 were registered after forfeiture of Mapeta 36, a position which is disputed by the first, second and fourth respondents. On the withdrawn matter case number HC 2124/22 the applicant averred that the withdrawal did not bar this application. Of course, this is correct. I however understood the reference to that case by the respondents to be that the applicant followed the correct procedure therein as opposed to what it has done in filing this first instance application.

In submissions, the applicant averred that the PMD's determination was invalid for lack of jurisdiction and should not be relied upon. If this is correct, then the issue of *res judicata* is answered and the matter ends here. If the determination is valid then *res judicata* becomes relevant. I have already found that the PMD had jurisdiction to make the determination. The issue is whether or not *res judicata* applies. It does in my view. The determination came about after the applicant and the fourth respondent referred the dispute for determination. They deposed to affidavits agreeing to the dispute being determined by the PMD. This is the same dispute before the court. It simply concerns the validity of claims Mapeta 164 and 168 and the relationship thereto with Mapeta 36. The first and second respondents have confirmed that Mapeta 164 and 168 overpeg Mapeta 36 which was pegged first and registered. The cause of action is the same contrary to the applicant's submissions. The applicant cited a number of cases which define *res judicata*. The definition causes no problems. The applicant did not set out the new facts in this matter as well as the facts in the determination and then demonstrated the differences.

The applicant's counsel submitted in the end when it appeared that the issue of the determination being valid could not be successfully countered, that the determination was not clear in certain portions for example on the issue of where disputed shafts lay. It was submitted that clarification was required. Counsel suggested that the court should appoint an umpire in terms of section 19A of the High Court Act [*Chapter 7:06*] to determine the dispute. This submission would have had merit had this application been properly before the

court on review or appeal. The applicant can still seek clarification on the determination if there are grey areas which need to be explained.

I was inclined to dismiss this application on the basis that the applicant deliberately adopted a wrong procedure and caused the respondents to incur unnecessary costs. I however considered that the issue of the PMD's jurisdiction to determine mining disputes was subject of conflicting judgments of this court. The applicant can be forgiven for taking the approach of challenging the jurisdiction as he was backed by conflicting case law. I consider that striking the matter off the roll will be a competent proper and fair remedy as it does not close the gate to parties pursuing their rights. The same consideration will be applied in relation to costs. There should be no order of costs. The matter is determined as follows

IT IS ORDERED THAT

1. The application be and is hereby struck off the roll with no order as to costs

CHITAPI J:……..

Rubaya and Chatambudza legal practitioners - applicant's legal practitioners
T. Kadhau Law Chamber – fourth respondent's legal practitioners